



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

222

CRWP-6982-2026

Date of Decision:16.06.2026

Happy Verma

.....Petitioner

Vs.

State of Punjab and Others

.....Respondents

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Janak Singh Bhinder, Advocate
for the petitioner.

Mr. Ravneet Singh Joshi, DAG, Punjab.

DEEPAK GUPTA, J. (ORAL)

Pursuant to the order dated 10.06.2026, the alleged detainees Kavita Dhiman, Garima Dhiman and Narinder Kumar have been produced. It is further informed that another alleged detainee Ashutosh Dhiman is not in the illegal custody of respondent No.4 as was alleged and rather he is presently at the house of Kavita Dhiman.

Respondent Nos.1 to 3 by way of affidavit of Mr. Sanjeev Singla, PPS, Deputy Superintendent of Police, City-I, District Patiala have also filed a short reply to the petition. The relevant para is as under:

“That the deponent respectfully submits that on 08.06.2026, Kavita Dhiman (alleged detainee No.1) made a call to the Police Control Room, Patiala, alleging that Manu Kaushik alias Goldy (respondent No. 4) had scuffled with her, extended threats, and caused damage to her property. Upon receipt of the said complaint by the complainant, ASI Mashoor Singh, posted at Police Station Division No. 2, Patiala,



reached the spot and conducted an enquiry into the matter. During the enquiry, it came to light that respondent no. 4 is the sister of Narinder Kumar (alleged detainee no. 4), the sister-in-law of Kavita Dhiman (alleged detainee no. 1), and the aunt of Ashutosh Dhiman and Garima Dhiman (alleged detainee Nos. 2 and 3). It further transpired that both parties were residing at Dera Dooma Wala Mandir and that an ongoing dispute existed between them regarding their respective rights and possession over the said Dera, with each side asserting its claim thereto.

That the deponent submits that the enquiry further revealed that respondent no. 4 had repeatedly engaged in scuffles and quarrels with Kavita Dhiman, thereby giving rise to apprehension of breach of peace. Consequently, preventive proceedings under Sections 126 and 169 of the Bharatiya Nagarik Suraksha Sanhita, 2023, were initiated against the respondent no. 4 vide DDR No. 08 dated 11.06.2026 recorded at Police Station Division No. 2, District Patiala.

That the deponent further respectfully submits that the alleged detainee(s) have not been illegally detained by respondent no. 4 or by any other person. The dispute between the parties essentially pertains to competing claims over the rights and possession of Dera Dooma Wala Mandir, which is civil in nature. It is further stated that no material has come to the notice of the police indicating any instance of illegal confinement or wrongful detention of the alleged detainee(s). Accordingly, apart from taking appropriate preventive action to maintain law and order, no further police action was found to be warranted in the matter.”

It is thus clear that as per the enquiries conducted by the police, it was an internal dispute between the parties pertaining to the claims over the rights and possession of Dera Dooma Wala Mandir which



CRWP-6982-2026

-3-

is civil in nature and in fact the alleged detainees were not in the illegal custody of respondent No.4.

As three of the alleged detainees have been produced and 4th is with them only, no further direction is required.

Disposed of.

In case, petitioner has any other grievance regarding the alleged illegal confinement by respondent No.4, he will be at liberty to take necessary action as per law.

(DEEPAK GUPTA)
JUDGE

June 16, 2026
Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No